**UNITED STATES DISTRICT COURT**
**NORTHERN DISTRICT OF ALABAMA**
**SOUTHERN DIVISION**

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| SOUTHEASTERN CONFERENCE,<br>PLAINTIFF,<br>v.<br>WADE ROUSSE, in his official capacity as President of Louisiana State University, et al.,<br>DEFENDANTS. | Civil Action No. 2:26-cv-01586-ACA |

**DEFENDANTS' MEMORANDUM IN SUPPORT OF THEIR MOTION TO DISMISS AND IN OPPOSITION TO PLAINTIFF'S MOTION FOR A TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION (ECF NO. 6)**

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# INTRODUCTION

The Southeastern Conference (SEC) filed this suit earlier this month amid lawsuits all over the country involving both the SEC and the National Collegiate Athletic Association (NCAA). In the intervening weeks, material developments have confirmed that this lawsuit was unwarranted when it was filed—and, more importantly, that the lawsuit is unwarranted today. The Amended Complaint (ECF No. 5) should be dismissed and the pending motion for preliminary relief (ECF No. 6) should be denied. That is principally because there is no Article III case or controversy. The SEC filed its suit and motion for preliminary relief primarily because of claimed fears over Louisiana State University (LSU) rostering certain football players or interfering with an SEC meeting on September 10. The players in question were not, in fact, rostered—and LSU's football roster is full and closed for the 2026–27 football season. The September 10 meeting, moreover, came and went without a problem. The SEC thus faces no imminent, concrete harm that could establish a case or controversy. Not only that, but insofar as the SEC's core (and odd) complaint is that the SEC suffers First Amendment harm from being forced to associate with LSU, that alleged harm is self-inflicted—and thus not cognizable under Article III. *See Clapper v. Amnesty Int'l USA*, 568 U.S. 398, 416 (2013).

As the SEC acknowledges (ECF No. 5 at 2–3), the SEC has obvious available forms of relief in its bylaws. Any harm from continued association is not forced upon the SEC. Indeed, as only one member of a 16 member unincorporated association, LSU has no power to force the SEC to do anything. Article III does not countenance invoking federal jurisdiction based on self-inflicted harm. Whether on standing, mootness, or ripeness, Article III compels the dismissal of this suit—and the denial of the SEC's moot yet still-pending motion for preliminary relief. That is all the Court need say to dismiss this suit. In all events, dismissal and denial are likewise warranted because the SEC cannot overcome other obvious jurisdictional obstacles to this suit. Each Defendant is a state official sued in his or her official capacity—and thus cloaked with sovereign immunity. The SEC's filings do not even attempt to explain how it can circumvent that immunity. For good reason: It cannot. Black-letter law holds that where a plaintiff sues a state

official for "relief that amounts to 'specific performance of a contract to which the State was a party'"—here, "the Conference's Constitution and Bylaws," ECF No. 5 at 43, ¶ 113—the plaintiff cannot invoke the *Ex parte Young* exception to sovereign immunity. *Lavina v. Fla. Prepaid College Bd.*, 174 F.4th 49, 53 (11th Cir. 2026) (quoting *Edelman v. Jordan*, 415 U.S. 651, 667 (1974)).

The SEC's attempt to use a federal court "to enforce its Constitution and Bylaws" is thus squarely barred by sovereign immunity. ECF No. 5 at 44, ¶ 117. That immunity bar says nothing of the corresponding lack of personal jurisdiction over Defendants or proper venue. And it says nothing of the meritless freedom-of-association claim advanced by the SEC. The Court should dismiss the Amended Complaint on any and all of these grounds and deny the still-pending but now moot motion for preliminary relief.

# BACKGROUND

## I. The NCAA Eligibility Rule Transition Prompts Litigation Over Returning Athletes.

This case arose against a broader backdrop of changes in NCAA eligibility rules. In June 2026, the NCAA adopted a new "5-for-5" model allowing student-athletes to compete for five seasons within five years. But its transition rules (or at least its interpretation of those rules) did not extend that benefit to student-athletes who graduated high school in 2022 and had exhausted their eligibility during the 2025–26 academic year under abandoned rules. Student-athletes around the country soon filed suits seeking an additional season under the new model. *See, e.g.*, *Wisne v. NCAA*, No. 1:26-cv-03063-CNS-KAS, 2026 WL 2214234, at *22 (D. Colo. July 31, 2026) (granting classwide preliminary injunction), *stay pending appeal granted*, No. 26-1309 (10th Cir. Aug. 21, 2026).

## II. The SEC Turns to Federal Court.

As the motion illustrates, the SEC grounded this suit in LSU's alleged failure to adhere to (or alleged undermining of) the terms and conditions of SEC's Constitution and Bylaws. *See id.* at 2, 3, 4, 6, 13, 14, 15, 16, 17, 19, 20, 21, 22, 23, 27–28 (citing the SEC's Constitution and Bylaws). The SEC also identified the true source of some of its alleged harm—the Louisiana

state court's injunction against it stating that "the SEC is enjoined from imposing penalties on LSU for its conduct." *Id.* at 18. And, perhaps most importantly, the SEC conceded that its alleged First Amendment associational harm arises only because the SEC refuses to "terminat[e] LSU's membership in the Conference." *Id.* at 19.

# ARGUMENT

## I. Dismissal Under Rule 12(b)(1) Is Warranted Because There Is No Article III Case or Controversy.

"Article III of the Constitution limits the jurisdiction of federal courts to 'Cases' and 'Controversies.'" *Murthy v. Missouri*, 603 U.S. 43, 56 (2024). Three jurisdictional defects here show that there is no case or controversy: (A) standing; (B) mootness/ripeness; and (C) sovereign immunity.

### A. The SEC Has No Article III Standing.

A straightforward Article III standing analysis ends this case. To bring this case, the SEC "'must demonstrate standing for each claim that they press' against each defendant, 'and for each form of relief that they seek.'" *Murthy*, 603 U.S. at 61 (quoting *TransUnion LLC v. Ramirez*, 594 U.S. 413, 431 (2021)). To do so, a plaintiff "must show that she has suffered, or will suffer, an injury that is 'concrete, particularized, and actual or imminent; fairly traceable to the challenged action; and redressable by a favorable ruling.'" *Id.* at 57 (quoting *Clapper*, 568 U.S. at 409). When, as here, a plaintiff seeks prospective relief, it must show a "substantial likelihood" of future injury that is not "conjectural, hypothetical, or contingent." *Malowney v. Fed. Collection Deposit Grp.*, 193 F.3d 1342, 1346–47 (11th Cir. 1999) (citation omitted). And of course, plaintiffs "cannot manufacture standing merely by inflicting harm on themselves based on their fears of hypothetical future harm that is not certainly impending." *Clapper*, 568 U.S. at 416. Those basic principles resolve this case from the jump. The only harm alleged in the Amended Complaint stems from a supposed "forced association" between the SEC and LSU. ECF No. 5 at 44, ¶ 116. But no one is forcing the SEC to associate with LSU. To the contrary, the SEC specifically pleads that the SEC possesses the power to unilaterally terminate LSU's conference membership. *Id.* at 2. And the SEC specifically argues that it can fully "exercise its First

Amendment rights … by terminating LSU's membership in the Conference." ECF No. 6 at 19. Now, to be clear, that drastic step is not—and was never—warranted. But the availability of that step shows the contrived nature of this suit: The SEC membership could unilaterally disassociate itself from LSU today. The SEC cannot "manufacture" Article III standing, therefore, by insisting on associating with LSU—and then claiming that the association hurts the SEC's alleged First Amendment rights. *Clapper*, 568 U.S. at 416.

The Supreme Court's First Amendment freedom-of-association cases illustrates SEC's misunderstanding of the law. "Freedom of association … plainly presupposes a freedom not to associate." *Christian Legal Soc'y v. Martinez*, 561 U.S. 661, 680 (2010). Constitutionally cognizable harm thus arises in the freedom-of-association context when a law or regulation "[i]nsists that an organization embrace unwelcome members." *Id.* But that is not the case here. And it points up related traceability and redressability problems: The SEC's asserted First Amendment harm traces to the SEC membership's unilateral decision to incur that harm—and no judicial decision can save the SEC from itself. One final point on standing and traceability: The SEC's pending motion gives away that a true source of its alleged harm is the Louisiana state court's injunction stating that "the SEC is enjoined from imposing penalties on LSU for its conduct." ECF No. 6 at 18. No Defendant is responsible for that alleged "injury that results from the independent action of some third party not before the court." *Murthy*, 603 U.S. at 57 (citation omitted). Accordingly, insofar as the state court injunction is the basis for this lawsuit, that confirms that the SEC lacks Article III standing to sue Defendants. Article III standing easily disposes of this case.

**B. Alternatively, This Suit Is Moot and Unripe.**

**C. This Suit Is Independently Barred by Sovereign Immunity.**

**II. Dismissal Under Rule 12(b)(2) and Rule 12(b)(3) Is Warranted Because This Court Lacks Personal Jurisdiction Over Defendants and Venue Is Improper.**

**III. Dismissal Under Rule 12(b)(6) Is Warranted Because the Amended Complaint Fails to State a Claim for Relief.**

**IV. Denial of the Motion for Preliminary Relief Is Warranted for Materially Identical Reasons.**

## CONCLUSION

The pending motion for preliminary relief should be denied, and this case should be dismissed.

Dated: September 25, 2026

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# CERTIFICATE OF SERVICE

The undersigned hereby certifies that a true and correct copy of the foregoing was filed electronically with the Clerk of Court using the CM/ECF filing system. Notice of this filing will be sent to all counsel of record by operation of the Court's electronic filing system.

Baton Rouge, Louisiana, this 25th day of
September, 2026.

/s/ Zachary Faircloth
Zachary Faircloth